



POLICE DEPARTMENT

November 16, 2015

MEMORANDUM FOR: Police Commissioner

Re: Police Officer Kenneth Douglas
Tax Registry No. 906146
102 Precinct
Disciplinary Case No. 2014-12925

The above-named member of the Department appeared before me on September 21, 2015, charged with the following:

1. Said Police Officer Kenneth Douglas, on or about August 11, 2013, at approximately 2138 hours, while assigned to the 102nd Precinct and on duty, [REDACTED], used excessive force against [REDACTED], in that he punched [REDACTED] without sufficient legal authority.

P.G. 203-11 - USE OF FORCE

2. Said Police Officer Kenneth Douglas, on or about August 11, 2013, at approximately 2138 hours, while assigned to the 102nd Precinct and on duty, [REDACTED], placed [REDACTED] into a chokehold.

P.G. 203-11 - USE OF FORCE

The Civilian Complaint Review Board (CCRB) was represented by Jonathan Fogel, Esq., Respondent was represented by Angelo MacDonald, Esq.

Respondent through his counsel, entered a plea of Not Guilty to the subject charges. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

DECISION

Specification No. 1: Respondent is found Not Guilty.

Specification No. 2: Respondent is found Guilty.

SUMMARY OF EVIDENCE PRESENTED

The CCRB's Case

CCRB called [REDACTED] as a witness. [REDACTED], who is in the process of filing a federal lawsuit against the City based on this incident, testified that he and other members of his cricket team were celebrating a win at their captain's home, located at [REDACTED]. [REDACTED] acknowledged that they were drinking alcohol inside the home. [REDACTED] admitted to drinking at least four shots of liquor, as well as some beer. (Tr. 41) As [REDACTED], Person A, and Person B were waiting out front for a cab to take [REDACTED] home, they were approached by Respondent and another uniformed officer. The officers were responding to a call from a neighbor about a fight that was taking place inside the location. (Tr. 21-23)

According to [REDACTED], he informed the officers that there was no fight, only an argument, at which point Respondent pushed [REDACTED] with his hand and told him to go inside the "yard," which essentially was a driveway leading back to a garage. When [REDACTED] asked if they had a warrant, Respondent told him to shut up and get into the yard. Respondent then pushed [REDACTED] to the ground, and when [REDACTED] stood back up Respondent put his right hand to [REDACTED] neck and choked him for about 15-20 seconds, during which time he could not breathe or speak. [REDACTED], who was not fighting

back or resisting, fell to his knees, where he claimed he fainted “for like five seconds”. [REDACTED] then stood back up as Respondent released his grip and took him into the yard. (Tr. 23-28, 37, 50) [REDACTED] wound up inside the garage, though he claimed he had no recollection of who was inside the garage or of what happened; he only knew that he was not injured before going in, and came out with a busted eye, lip, and chin for which he had to go to the hospital. (Tr. 28-29) CCRB introduced several photographs depicting [REDACTED] injuries (CCRB Exs. 9-12) along with his medical records (CCRB Ex. 13).

CCRB introduced into evidence video footage of the incident taken from several security cameras. (CCRB Ex. 1), along with a 20-second snippet pulled from the same video focusing just on the altercation on the sidewalk where the alleged chokehold occurred. (CCRB Ex. 2) [REDACTED] is seen in the snippet, wearing a white shirt and with a bookbag on his back, fighting with Respondent and his partner, Officer Bachal. The video shows Person B (wearing a white tank-top shirt) and Person A in the middle of the skirmish, trying to separate [REDACTED] from Respondent; the two of them, particularly Person A, are repeatedly interfering with the officers. At 21:24:24, the struggle propels [REDACTED] against a fence, and then he bounces back off of it. By the 21:24:27 point of the video, Respondent appears to have placed his right hand over the front of [REDACTED] throat, while his left hand is behind [REDACTED] head. With his hands so positioned, Respondent seems to maneuver [REDACTED] body, which turns from facing forward to facing left. As of 21:24.33, Respondent still maintains his grip on the throat, and at 21:24.35, [REDACTED] goes to his knees.

The Respondent's Case

Respondent, who has been an officer for over 21 years, testified that he and his partner, Officer Bachal, responded to a call of a group fighting at the location. As the officers were about to proceed down the driveway to the garage, [REDACTED], who was alone in front, aggressively approached and asked them where they were going and whether they had a warrant. (Tr. 97, 166-167) Respondent put his hands out and told Ashmid to calm down, that they were there to investigate. At that point, [REDACTED] chest-bumped Respondent several times. (Tr. 98, 170)

Respondent instructed [REDACTED] to step back or he would be arrested, but [REDACTED] who was "highly drunk and belligerent", refused. Respondent informed [REDACTED] that now he was going to be arrested and tried to grab [REDACTED] hand, but Person A then came out of the house and grabbed Respondent's hand as he was trying to handcuff [REDACTED]. Person B also appeared and tried pushing Respondent and his partner away from his brother. A struggle ensued, and [REDACTED] pulled away from the front of the house and moved over to the next house, where the events captured on the video occurred. (Tr. 99- 101, 109-111, 193)

Respondent pursued [REDACTED] to the next house and the struggle involving all five people continued, with Person A and Person B continuing to grab, hold, and block Respondent from arresting [REDACTED]. (Tr. 193) As Respondent again was attempting to get control of [REDACTED] to place him under arrest, he placed his right hand near [REDACTED] shoulder and neck area, an inch or two from his neck, "the only place (he) could hold onto him." (Tr. 112-116, 128-129, 151) At the same time, Respondent placed his left hand behind [REDACTED] head to hold him. (Tr. 152) Respondent acknowledged placing

his right hand under [REDACTED] chin, in the area of his Adam's apple, but insisted he did not intentionally try to choke [REDACTED] or restrict his breathing. (Tr. 128, 160-161, 191) [REDACTED] then fell to the ground, got back up, and ran down the driveway, with Respondent running after him, and Person A and Person B behind. According to Respondent, they all stopped in the driveway, at an area a few feet in front of the garage; the garage door was closed, and a crowd started to form in the area. (Tr. 116-117, 176)

As Respondent again tried to arrest [REDACTED], there was another physical altercation in the area in front of the garage; [REDACTED] fought off Respondent, while Person A pulled on his arm and jumped on his back. Respondent admitted to physically striking [REDACTED] and causing his injuries, but only after the latter had first struck him. Respondent had his partner call for back-up, and Respondent finally was able to rear-cuff [REDACTED] and place him under arrest for disorderly conduct and resisting arrest. (Tr. 119- 121, 184-185) Respondent maintained that he never entered the garage during this altercation. (Tr. 179)

The video footage of the driveway area (part of CCRB Ex. 1) reveals that after exiting his vehicle, Respondent first appears to walk part-way down the driveway, with an unobstructed path to the garage, before doubling back to the sidewalk where he engages with [REDACTED] (21:23:40) After [REDACTED] breaks away from Respondent, the footage shows Person A hustling an apparently intoxicated [REDACTED] down the driveway and into the garage, which is open. (21:25:35) Respondent is then seen walking slowly down the driveway with no urgency, and stopping outside the garage. (21:25:58) He doubles-back a few feet and talks briefly with other people in the driveway, including Person B, (21:26:18) and then returns to the garage and actually enters it. (21:27:30) Not much of

the subsequent struggle and arrest of [REDACTED] is visible from the footage, but eventually a handcuffed [REDACTED] is seen being led out of the garage by police. (21:34:02)

Respondent acknowledged that in his interview with CCRB on June 5, 2014, he stated that he could not recall the details of this incident. However, he testified that his memory of the events was now refreshed. (Tr. 131-139, 189-190)

FINDINGS AND ANALYSIS

Section 203-11 of the Patrol Guide, which deals with the use of force by members of the service, emphatically declares that EXCESSIVE FORCE WILL NOT BE TOLERATED. The section provides further guidance by stating that members of the Department will NOT use chokeholds. A chokehold "shall include, but is not limited to, any pressure to the throat or windpipe, which may prevent or hinder breathing or reduce intake of air."

This definition of what constitutes a chokehold focuses on the conduct itself rather than the intention of the officer. If an officer exerts pressure on a person's throat area in the manner proscribed, that officer will have run afoul of the guidelines, and be subject to discipline. Here, after considering the testimony of the complainant [REDACTED], the video footage, and Respondent's own testimony including admissions, this tribunal is persuaded that CCRB has proven, by a preponderance of the evidence, that Respondent used a chokehold in this case.

To be sure, there are credibility issues connected with [REDACTED] testimony. He is in the process of suing the City over this incident, and has a motive to exaggerate Respondent's culpability. There is compelling evidence that [REDACTED] was heavily

intoxicated during the incident, and that he was belligerent and combative in his dealings with the police that night. Also, his memory on the witness stand was somewhat selective. For example, he claimed he had no memory of what occurred inside the garage, which was just moments after the incident by the fence where he talked in great detail about the chokehold.

However, a pivotal portion of [REDACTED] testimony, where he recounted Respondent's use of a chokehold, was supported by Respondent's admission that he reached out to grab hold of [REDACTED] and placed his right hand in the area of [REDACTED] Adam's apple. There is further corroboration in the video footage, as highlighted in the 20-second portion submitted into evidence. (CCRB Ex. 2) The footage confirms [REDACTED] description of the struggle, including how Respondent reached out with his right hand and grabbed him in the throat area. The chokehold begins at approximately the 21:24.27 mark and continues for the next seven seconds. With one hand on [REDACTED] throat and the other behind his head, Respondent appears to have a firm hold on [REDACTED] throat and neck as he maneuvers his body away from the fence. From this evidence, it is reasonable to conclude that there was some level of pressure applied to the throat area in a way that could hinder breathing or reduce the intake of air. Even if this tribunal doesn't credit [REDACTED] contention that he couldn't breathe for a full 15-20 seconds, Respondent's act of grabbing and holding [REDACTED] throat, and exerting pressure to physically manipulate him, was readily capable of hindering [REDACTED] breathing. This conduct violates the provisions of the Patrol Guide. Accordingly, I find Respondent guilty of Specification No. 2.

However, CCRB has failed to meet its burden with regard to Specification No. 1, alleging that Respondent punched [REDACTED] without legal authority. Respondent testified that he only hit [REDACTED] after the latter struck him first, and that an intoxicated [REDACTED] was continuing to resist efforts to arrest him for disorderly conduct. At the same time, Person A was jumping on Respondent in a way that compromised the officer's ability to get things under control. Even without video footage showing this portion of the incident, Respondent's description of these events is easy to envision in light of the footage we do have, showing the belligerent behavior of [REDACTED] and Person A during the struggle by the fence, and the manner in which a visibly agitated [REDACTED] is then led down the driveway to the garage by Person A. Respondent's explanation for why he punched [REDACTED] was not refuted by CCRB, particularly since [REDACTED] claimed to have no memory of what actually transpired inside the garage. Instead, CCRB relies on the photographs and medical records depicting [REDACTED] injuries. However, these items provide no insight into the circumstances of how those injuries occurred.

This tribunal recognizes that some of Respondent's description of events was contradicted by the video footage. However, the burden still remains with CCRB, and in light of [REDACTED] combative behavior, as well as his professed inability to recall any details of how he sustained his injuries, that burden has not been met here. Accordingly, I find Respondent not guilty of Specification No. 1.

PENALTY

In order to determine an appropriate penalty, Respondent's service record was examined. See *Matter of Pell v. Board of Education*, 34 NY 2d 222 (1974).

Respondent was appointed to the Department on February 28, 1994. Information from his personnel record that was considered in making this penalty recommendation is contained in an attached confidential memorandum. In 2009, Respondent was found guilty of specifications regarding two separate domestic incidents, including one where he punched the person in the face.

CCRB recommends that Respondent forfeit thirty (30) vacation days, and be placed on dismissal probation for a period of one (1) year. That recommendation is excessive. Respondent has served the Department for over 21 years. He has been found "not guilty" of one of the two charges of improper force. As to the chokehold, it occurred in a situation where an intoxicated complainant was resisting arrest and two other civilians were actively interfering with the apprehension process as well. None of this interference excuses Respondent's use of a chokehold, which as discussed above is prohibited by the Patrol Guide. But a penalty of dismissal probation does not seem warranted here.

In *Disciplinary Case No. 73100/98* (February 17, 2000), a highly decorated lieutenant with 15 years on the force forfeited fifteen (15) vacation days where he approached a man he suspected of possessing a firearm and grabbed him by the throat. After taking into account the totality of the circumstances, that penalty seems reasonable under the facts of this case as well.

Accordingly, I recommend that the penalty be the forfeiture of fifteen (15) vacation days.

Respectfully submitted,



Jeff S. Adler
Assistant Deputy Commissioner – Trials

APPROVED

FEB 16 2016

WILLIAM J. BRATTON
POLICE COMMISSIONER

POLICE DEPARTMENT
CITY OF NEW YORK

From: Assistant Deputy Commissioner – Trials
To: Police Commissioner
Subject: CONFIDENTIAL MEMORANDUM
POLICE OFFICER KENNETH DOUGLAS
TAX REGISTRY NO. 906146
DISCIPLINARY CASE NO. 2014-12925

In his last three annual evaluations, Respondent received an overall rating of 3.0
“Competent.” [REDACTED]

In 2000, Respondent forfeited 30 vacation days and was placed on one-year dismissal probation for engaging in prohibited conduct. In 2009, he forfeited 32 pretrial suspension days and 28 vacation days for being involved in an off-duty domestic incident, engaging in a physical altercation, endangering the welfare of a child, interfering with a Department investigation and failing to provide his pedigree information to responding officers. He has no other formal disciplinary record.

For your consideration.



Jeff S. Adler
Assistant Deputy Commissioner – Trials